

26LBCV00837 26LBCV00837

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-22

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Case Number: 26LBCV00837 Hearing Date: September 22, 2026 Dept: S27

1. Background

Facts

Plaintiffs, Charles Shuler and Eva

Gulbrandsen filed this action against Defendants, Titan Truck Corporation and

Xiaoli Shen for damages arising out of an automobile accident. Plaintiff initiated the action on 4/06/26 and

Defendants filed an answer on 6/04/26.

2. Motion

for Trial Setting Preference

a.

Governing Law

Plaintiffs move for trial setting

preference pursuant to CCP §36(a), which provides:

(a) A party to a civil action who

is over 70 years of age may petition the court for a preference, which the

court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in
the action as a whole.

(2) The health of the party is

such that a preference is necessary to prevent prejudicing the party's interest
in the litigation.

b.

Age

Plaintiff establishes Gulbrandsen is over 70 years of age. In the absence of opposition, the Court finds this requirement is met.

c.

Plaintiff's Health

Plaintiff supports her motion with the declaration of her attorney, who attaches her medical records. Counsel establishes Plaintiff has preexisting Stage 3 Chronic Kidney Disease, hypertension, and major depressive disorder, and after the accident she suffered severe traumatic injuries, which required a lumbar fusion surgery. She was recently hospitalized for 23 days due to a bladder infection that led to sepsis and nearly died.

Notably, CCP §36.5 specifically permits a motion under §36(a) to be supported by an attorney and made on information and belief. Again, in the absence of opposition, the Court finds Plaintiff met her burden to show her health is such that preference is necessary.

d.

Trial

Setting

CCP §36(f) requires the Court to set trial not more than 120 days after the hearing on this motion. 120 days after the hearing on today's motion falls on Sunday, 12/20/26. The Court therefore sets this case for trial on Friday, 12/18/26 at 8:30 a.m. in Department S27. The Court sets the case for a Final Status Conference on Monday, 12/14/26 at 8:30 a.m. in Department S27.

Plaintiff is ordered to give notice.